Ref. No. ACC/QMS/F/CoM/01

ANTI-CORRUPTION COMMISSION

COMMISSION MEETING FORM

MEETING NO. 91st Commission Meeting

DATE: 10 August 2022

TIME: 2:00 PM

VENUE: Third Floor Meeting Room

#	AGENDA & DISCUSSIONS	DECISIONS
1	**Present the Civic and Voter Education Modular Framework - ED, DoPE** As a collaborative effort in educating the general public about the risk of corruption during the election, the ED in collaboration with the ECB has prepared a civic and voter education modular framework emphasizing the importance of ethics and integrity. The program includes developing content and training the trainers for mass advocacy programs prior to the general election *(details attached)*.	The Commission acknowledged the draft framework and approved in principle. However, the ED was directed with specific comments as; • highlight the excerpts on ethics and integrity from HM addresses. • co-relate the contents with the ongoing reforms (accountable leadership) and also try to link it with the IVS The Commission cautioned the Division that the trainers/presenters must be thorough and should have the same content. Further, owing to the sensitive nature of the subject and also the audience, the Commission reminded that the presenters should be cautious about the choices of words/phrases.
2.	**Present update on Integrity Club - ED, DoPE** The ED updated the status of the integrity club, the best initiatives undertaken, the challenges and the wayforward *(details attached)*.	Approved the way forward activities as proposed and further, the Division was directed to draft a letter to all the school principals/club coordinators acknowledging their initiatives and also seeking their continued support in promoting integrity in the schools.
3.	**Reappraisal on the proposal for insertion of new section in the Debarment Rule as proposed by MoF to implement fiscal measures - LD** As directed in the previous Commission meeting, the LD presented the clarification on the notification for implementation of	Approved as proposed

	fiscal measures including the Bid Securing Declaration. The LD also presented the draft amendment in section 25 of the Debarment Rules 2019 to debar a person against whom a suspension order has been issued ensuing the investigation for prima facie corruption offenses by the Commission.	
4.	**Present the ACC amendment Act 2022 implementation plan - LD** ACAB (Amendment) 2022 implementation plan was presented to the Commission *(as attached).*	As an additional activity, the Commission directed to insert a sensitization program specifically on "loss to the state" to all relevant stakeholders. Further, directed to incorporate the amended clauses in the education programs for sensitization. LD was also asked to present the ACAB (amendment) 2022 to all the staff after the weekly work plan and management meeting.
5.	**Propose change of member for Gift Administration Committee (GAC) - PPD** It was apprised that two members of the Gift Administration Committee had left the office, the PPD proposed to reappoint new members for the Committee.	The Commission decided to appoint the following officials as a new member to the committee. 1. Tashi Jamtsho, PD, DoPE (Chairperson) 2. Kinley Wangchuk, LD (member)
6	**Others** The meeting discussed on the following pending activities; 1. Dissemination of OIP report 2. Youth Integrity Assessment report 3. Evaluation report of Social Accountability program	PD will disseminate the OIP report to all the agencies except for the CSOs and Media houses. With regard to the other two study reports, it was directed to distribute the reports to all relevant stakeholders. However, the division was reminded to keep a low profile and away from the media. EAD was also asked to present the findings to all the staff after the WWP and management meeting.

Commissioner **Commissioner** **Chairperson**

Civic and voter education modular framework

Module/Chapter: Ethics, Integrity and Professionalism

Aim: To promote a vibrant democracy in Bhutan through ethical leadership and integrity culture

Objective of the module/chapter:

- **Your right, your Voice: Say no to corruption**

Suggestive topics from ACC

Corruption

- Define corruption (day-to-day language)
- Common corruption issues in the country

Corruption in Election

- Rampancy and trend of Bribery in Elections (Research findings)
- Voting based on Favoritism, Nepotism and patronage (research findings)
- Common corruption offence(s) during election period (Complaints received and forwarded to the ECB)
- Forms of these offences (Gift, promises, family and peer pressure, gratifications)

Case study

- Cases shared for action to ECB
- Cases qualified for investigation

- Penalties and fines thereof

Impacts/outcome of corruption during election (A voters' point of view)

- Unethical leaders (**leading to further corruption**): Cascading effect of corruption
- Loss to the state (Long term social cost of electing wrong leaders)
- **Loss to the community** (revenue loss, biased decision making)

Values: Antidote to corruption (Tha Damtsi and Ley Judrey and Ethics and Integrity)

Integrity: A way to confront corruption

- Voters integrity: Right candidate without any favors or gratifications

- Lodging complaints related to corruption; reporting corruption in election

Conclusion: The advantages of ‘Free, fair and clean election’ (‘corruption free election’)

Update on School Integrity Club:

No. of Schools: 21 (1 new)

Lingmethang MSS, Mongar- Own initiatives, ACC agreed to provide any necessary and possible technical supports)

Members: 781 members (372 males and 409 females) from 21 schools, Lingmethang MSS (own initiatives with possible support from ACC)

Initiatives from school: Radhi School- (school-based program) and one school has a member from each class

What has been done: upscaling, enhancement of club and consultation, refresher course, professional development/foresight workshop, human value workshop

Challenges: Change of leadership and club coordinators, pandemic, education reforms sustainability of the club, **Sustainability:** Mainstreaming of IC, close intervention from ACC in terms of cost and Human Resources, in near future IC could be replaced by Scouts module.

YIA 2021: As per the Youth Integrity Assessment 2022 report, the schools with Integrity Club have scored slightly higher with a score of 65.55 as compared to schools without Integrity Club (63.64). The schools with Integrity Clubs have scored high specifically in the *'Index on Integrity Awareness'* with a score difference of 2.77. Moreover, the study also compared the scores of the members and non-members of the Integrity club within the schools where there is integrity club. The overall integrity score for the members is higher by 4.18 when compared to non-members. This indicates the efficiency and effectiveness of Integrity Clubs in promoting moral values, especially integrity among the youth.

Visited: Education Monitoring Division

Chief EMO Sangay Chophel

- Education reforms- whether there is a talk or reforms in terms of the club (do away with the clubs or new initiatives)
- Discussion was purely on academic

Way forward:

Enhancement of clubs- January (consultative meeting) 3 region

Piloting by the ongoing club coordinators and sharing their findings during the consultation meeting.

Infusing of integrity in students and school programs and others apart from restricting to the club and its member. E.g., Taktse school exam without invigilator, football or any program

Include 4 Thromde

Collaboration Royal Audit Authority

Anti-Corruption (Amendment) Act of Bhutan 2022 implementation action plan

Sl. No.	Activities	Responsibility	Tentative Timeline	Remark
1	Compile and consolidate the amended or new sections in one document to guide the users and ease the reference	LD & PPD	2nd Week of August, 2022	Compilation completed and forwarded to PPD for formatting
2	Sensitized the ACC staff, through sharing the consolidated Act	LD	2nd Week of August, 2022	
3	Initiate printing process of the consolidated Act	LD, PPD, SS	2nd Week of August, 2022	Print copies sufficient to ACC staffs only within the budget of Nu. 200,000/-
4	Amend Asset Declaration Rules to suit the amendment in section 38(4) – Dzongkha Text	LD, ADMD	Initiate within 3rd Week of August	
5	Draft Seized/Frozen Property Management Rules to implement section 104(4) and 108(3)	LD, CFD-DoPS	November	Soon after completion of review of the Asset Declaration Rules
6	Review of Complaints Management Guideline, ATR Guidelines to suit amendment in sections 79, 138 and 139	DoPS, LD		
7	Legal Division to articulate the phrase 'loss to state' as added in section 58 to prepare the ACC employees what it entails	Upfront		

Other Decision

- Make presentation to all ACC staff on the amended sections after the Work Plan Meeting
- Notification in the ACC website on the amendments;
- Share a link with OIP agencies with an attention to important amendments such as loss to state, ATR etc.

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ROYAL GOVERNMENT OF BHUTAN
ANTI-CORRUPTION COMMISSION
'NATION'S CONSCIENCE'

"LEAD BY EXAMPLE"
"If you care, you will dare"

ACC/LD-03/2022/1448 11th August, 2022

Public Notification

The Anti-Corruption Commission of Bhutan, in exercise of section 40 and 171 of the Anti-Corruption Act of Bhutan; and in line with the notification no. MoF/DRC/Fiscal Measures-COVID-19/2022/27 dated 6th July 2022 and subsequent letter no. MoF/DNP/PMDD-13/2022-23/035, dated 11th July 2022 of the Ministry of Finance, hereby inserts following new sections in the Debarment Rules 2019 to implement the Fiscal Measures Phase IV.

27A. Notwithstanding sections 26 and 27 above, the Secretariat shall, upon intimation by a procuring agency, debar a bidder failing to comply with terms and condition of the Bid Security Declaration for one year by forgoing the procedures established under sections 28 to 55 of this Rule.

27B. The authority provided under section 27A shall continue to have an effect so long the implementation of fiscal measures continues.

Further, in order to ensure that the public agencies enter into contractual relationship only with a responsible person or entity, section 25 of the Debarment Rules 2019 has been amended as follow:

25. The Anti-Corruption Commission shall refer the details on any suspension or revocation awarded in connection to corruption offense to the Secretariat for debarment of a person for so long the suspension or revocation order subsist unless it is revoked by the Anti-Corruption Commission or by the competent court of jurisdiction or upon the completion of criminal proceedings.

The new sections shall come into effect from the date of issuance of this notification.

Deki Pema
(Chairperson)

Copy to:

(i) Hon'ble Minister, Ministry of Finance;
(ii) Secretary, Ministry of Finance;
(iii) Director, Construction Development Board, for necessary action;
(iv) Secretary General, Bhutan Chambers of Commerce and Industries, to inform the suppliers and service providers;
(v) Executive Director, Construction Association of Bhutan, to inform the contractors;
(vi) Chief, Procurement Management Development Division (Secretariat to Debarment Committee), for necessary actions;
(vii) Kuensel Corporation, Thimphu for an upcoming publication; and
(viii) Bhutan Broadcasting Service Corporation, Thimphu for a broadcast in both Dzongkha and English on 28th of July 2022.

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